

Tentative Rulings and Resolution Review Hearings

June 2, 2025

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

BANGHART VS. REDDING APPLIANCE CENTER, ET AL.

Case Number: 24CV-0204133

Tentative Ruling on Motion to Compel Further Supplemental Requests for Production and to Compel the Resumption of the Deposition of Joe Heslin: Plaintiff Travis Banghart moves to compel further production from Defendant Joseph Heslin and to resume the deposition of Joseph Heslin. Defendant opposes the motion.

Meet and Confer. Plaintiff has provided evidence of sufficient efforts to meet and confer prior to filing the motion.

Merits. Defendant Heslin was deposed on March 12, 2025. The Deposition Notice included nine separate requests for production. Defendant provided objections and responded to each, either indicating that all responsive nonprivileged documents, if any, would be produced or that that he could not produce responsive documents as he was unaware of any that exist. Three documents were produced prior to the deposition. During the deposition, Mr. Heslin testified multiple times that he did not search for the requested records. Following meet and confer efforts, Plaintiff brought this motion.

(a) If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.

(b) This motion shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer declaration under Section 2016.040.

CCP § 2025.480.

The Declaration of Joseph Heslin was filed with the Opposition. Defendant declared that he tasked Mario Callegari with obtaining cellular phone records in the fall of 2024. Many months ago, Defendant provided his attorney with his cellular phone to search for text messages and emails. One text message was found. Plaintiff argues that Defendant Heslin is included in emails produced elsewhere in the case and that this therefore means that Defendant Heslin has withheld relevant records. The Court does not agree. Being included in an email chain does not mean that Defendant Heslin is still has possession of the emails or had possession of them when this case was filed. The Court notes that the Complaint was filed nearly two years after Plaintiff worked at Redding Appliance Center. Plaintiff has failed to show that Defendant Heslin failed to comply with the Deposition Notice

or that he is withholding any responsive documents. Further, plaintiff has provided no authority that a party cannot engage in the assistance of others, including his attorney, to search for relevant records.

Sanctions. Given the Court's ruling, monetary sanctions will not be awarded.

The motion is **DENIED**. Plaintiff has submitted a proposed order that will be modified to reflect the Court's ruling.

IN RE: BOLLINGER

Case Number: 25CV-0206985

Tentative Ruling on Petition for Change of Name: Petitioner Stephanie Lynn Bollinger, AKA Stephanie Lynn Lowdermilk and Stephanie Lynn Zeccardi, seeks to change her name to Stephanie Lynn Bollinger. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Court notes Petitioner has indicated she is under the jurisdiction of the CDCR or in county jail. Based upon the criminal history check performed by the Court, this statement appears to be in error. However, further clarification is needed. Upon sufficient clarification regarding the statement, the Court intends to grant the Petition. **An appearance is necessary on today's calendar.**

CAPITAL ONE, N.A, VS. SANCHEZ

Case Number: 24CVG-00905

Tentative Ruling on Motion to Vacate Dismissal and Enter Judgment Per CCP § 664.6: Capital One, N.A. seeks to vacate the dismissal entered on November 15, 2024, and enforce the Stipulation Agreement filed on November 14, 2024. Although the motion was timely noticed, Defendant Athena A. Sanchez did not file an opposition.

Request for Judicial Notice. Plaintiff requests the Court take judicial notice of the Stipulation Agreement filed with the Court on November 14, 2024. This request is granted pursuant to Evid. Code §§ 452(d) and 453.

Merits. CCP § 664.6 provides the Court with authority, upon motion, to enter judgment pursuant to the terms of a settlement agreement entered into in writing, or orally before the Court. If requested by the parties, the Court also retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

The parties stipulated to settlement in November 2024. The agreement provides that Defendant agreed to pay Plaintiff \$151.00 by August 30, 2024, followed by a minimum of \$151.00 by the 26th day of each month, commencing in September 2024. In the event of a default, Defendant is to pay \$4,508.90, plus costs. Dismissal was entered on November 15, 2024. The Declaration of Alexander Balzer Carr establishes that the last payment was received on October 10, 2024. Defendant has paid \$302.00. The balance now due is \$4,206.90 plus costs in the sum of \$603.61 for a total requested judgment of \$4,810.51. A memorandum of costs has been filed. Plaintiff has presented sufficient evidence that Defendant is in default of the Stipulated Agreement.

The motion is **GRANTED**. The dismissal is set aside. Judgment will be entered in the amount of \$4,810.51. Plaintiff provided a proposed Order and Judgment that will be executed by the Court.

IN RE: CHAPMAN

Case Number: 25CV-0207106

Proposed Tentative Ruling on Petition for Change of Name: Petitioner Tiffany Chapman seeks to change the name of her minor child, Zachary Rian Sharette Hunt, to Zachary Rian Chapman. All procedural requirements of CCP § 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

IN RE BATT-DIENER

Case Number: 25PB-0032846

Tentative Ruling on Petition to Approve Minor's Compromise: This Petition for Approval of Compromise of Claim for Minor seeks approval of settlement of minor Hunter Batt-Diener's claims from an incident on August 31, 2023. The Petition was originally on calendar for hearing on April 21, 2025 but was continued for Petitioner to provide additional information. While Petitioner was appointed as the Guardian Ad Litem on May 9, 2025, nothing was filed addressing the balance of the Court's noted concerns. As noted on April 21, 2025, no information was provided regarding the likelihood that the minor may need future medical care. It is not clear when the photographs attached as Exhibit 8c were taken. Based on the photos, it appears that the minor has significant scarring on his face. In addition to current photographs of the minor and evidence of possible future medical care, the Court requested that Petitioner file a supplemental declaration regarding the financial status of Arthur Spears and whether the offered settlement is the policy limit. Petitioner did not provide any additional information. **An appearance is necessary on today's calendar.**

IN RE: FLANERY

Case Number: 25CV-0207060

Proposed Tentative Ruling on Petition for Change of Name: Petitioner Alyssa Marie Flanery seeks to change her name to Alysha Marie Flanery. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied, with the exception that proof of publication has not been filed. The Court intends to grant the Petition upon presentation of sufficient proof of publication. **An appearance is necessary on today's calendar.**

IN RE: FONSECA

Case Number: 25CV-0207092

Proposed Tentative Ruling on Petition for Change of Name: Petitioner Madison Autumn Fonseca seeks to change her name to Madison Autumn Carlton. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

GJETLEY VS. SANDOVAL, ET AL.

Case Number: 24CV-0204317

Tentative Ruling on Motion to Compel Response and Further Response to Request for Production: Defendant Gary Sandoval moves to compel Plaintiff Lester Gjetley to provide further responses to discovery propounded to Plaintiff. The Court notes that Defendant's Motion for Summary Judgment was granted on May 27, 2025. Therefore, this motion is moot and should have been withdrawn. The motion is dropped from calendar. **No appearance is necessary on today's calendar.**

HUBBELL VS. DEPARTMENT OF MOTOR VEHICLES

Case Number: 24CV-0206366

Tentative Ruling on Motion to Seal Administrative Record: Petitioner Bruce Grant Hubbell moves to seal the Administrative Record in this matter. Respondent Department of Motor Vehicles opposes the motion.

"Except as provided in Section 214 of the Family Code or any other provision of law, the sittings of every court shall be public." CCP § 124. Unless confidentiality is required by law, court records are presumed to be open to the public. CRC 2.550(c). CRC 2.551 prohibits the court from permitting a record to be filed under seal except by motion or application. The moving party bears the burden to provide "facts sufficient to justify the sealing." CRC 2.551(b)(1).

"The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication. [Citation.] Substantive courtroom proceedings in ordinary civil cases, and

the transcripts and records pertaining to these proceedings, are “presumptively open.” ’ [Citation.]” *Savaglio v. Wal-Mart Stores, Inc.* (2007) 149 Cal. App. 4th 588, 596–597. Prior to granting any sealing motion, the trial court must hold a hearing and “expressly find that (i) there exists an overriding interest supporting closure and/or sealing; (ii) there is a substantial probability that the interest will be prejudiced absent closure and/or sealing; (iii) the proposed closure and/or sealing is narrowly tailored to serve the overriding interest; and (iv) there is no less restrictive means of achieving the overriding interest.” *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal. 4th 1178, 1217–1218; CRC 2.550(d).

[A] reasoned decision about sealing or unsealing records cannot be made without identifying and weighing the competing interests and concerns. Such a process is impossible without (1) identifying the specific information claimed to be entitled to such treatment; (2) identifying the nature of the harm threatened by disclosure; and (3) identifying and accounting for countervailing considerations. The burden of presenting information sufficient to accomplish the first two steps is logically placed upon the party seeking the sealing of the documents, who is presumptively in the best position to know what disclosures will harm him and how.

H.B. Fuller Co. v. Doe (2007) 151 Cal. App. 4th 879, 894.

Numerous cases have reiterated the high standard required to obtain a sealing order. A request to close proceedings due to the fact that litigants were celebrities who sought protection from media attention was denied. *NBC Subsidiary (KNBC-TV), Inc. v. Sup.Ct. (Locke)* (1999) 20 Cal. 4th 1178, 1217-18. A sealing order was denied in a case involving online employee reviews critical of the employer, which could subject the employee to repercussions from the employer. *Glassdoor, Inc. v. Sup.Ct. (Machine Zone, Inc.)* (2017) 9 Cal. App. 5th 623, 639.

In the Notice of Motion, Petitioner asserts that the Administrative Record contains “private and/or sensitive records concerning Petitioner.” The Notice goes on to specify “Petitioner’s private ad (*sic*) privileged California driver’s license information, which could negatively impact Petitioner’s identify, employment, financial security and privacy... and it could also subject Petitioner to abuse, harassment and/or ridicule.” The only piece of information specifically discussed in the memorandum is a social security number. The Court notes that Petitioner’s social security number is not found anywhere in the Administrative Record.

Petitioner has not identified specific information within the Administrative Record (other than a social security number or driver’s license information) that Petitioner asserts is entitled to sealing. The specific harm identified by Petitioner is the negative impact to Petitioner’s identity, employment, financial security, and privacy. Petitioner also asserts, without specifying how, that the information could subject Petitioner to abuse, harassment, and/or ridicule. Petitioner did not discuss any countervailing considerations. Respondent points out that the underlying facts of Petitioner’s arrest are contained within the Petition for Writ of Mandate filed by Petitioner on November 1, 2024 and are already public information. Respondent additionally argues that the public has an interest in records concerning intoxicated drivers.

The Court finds that Petitioner has failed to establish that there is an overriding interest that supports sealing of the Administrative Record or any portion thereof. The motion is **DENIED**. The clerk is directed to return the large white envelope conditionally filed under seal by Petitioner. The Court notes that Petitioner submitted a Notice of Lodging of Administrative Record with the Administrative Record attached. As the Administrative Record was lodged by Respondent, the clerk is also directed to return the copy submitted by Petitioner. Petitioner provided a proposed order that will be modified to reflect the Court’s ruling.

JACKSON VS. ENTERPRISE ELEMENTARY SCHOOL DISTRICT, ET AL.

Case Number: 24CV-0206371

Tentative Ruling on Motion for Leave to Amend: Plaintiff Kamarin Jackson moves for leave to file a Second Amended Complaint that adds a Seventh Cause of Action. Despite being properly noticed, Defendants Enterprise Elementary School District and Kristin Bowling did not file an Opposition. The procedural requirements for a motion to amend a pleading are set forth in CRC 3.1324 and have been satisfied by Plaintiff.

CCP § 473(a)(1) permits any pleading to be amended in further of justice and on any terms as may be proper, after notice to the adverse party. The Court's discretion in this regard will usually be exercised liberally to permit amendment. *Nestle v. Santa Monica* (1972) 6 Cal. 3d 920, 939. "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." *Morgan v. Sup.Ct.* (1959) 172 Cal. App. 2d 527, 530. In general the Court should not concern itself with the validity of the proposed amendment in the motion for leave to amend. *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal. App. 3d 1045, 1048. The validity of the amendment can be challenged by a subsequent demurrer, motion for judgment on the pleadings, or other appropriate proceeding. *Id.*

Delay alone is not sufficient grounds to deny a motion to amend, absent prejudice to the opposing party. *Atkinson v. Elk Corp.* (2003) 109 Cal. App. 4th 739, 761. Prejudice exists, however, where the amendment would result in a delay of trial, loss of evidence, added preparation costs, additional discovery, or other costs. The weight of the prejudices is increased where there is no explanation for the delay in amending. *See, e.g., Magpali v. Farmers Group, Inc.* (1996) 48 Cal. App. 4th 471, 486-488; *P & D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal. App. 4th 1332, 1345; *Fisher v. Larsen* (1982) 138 Cal. App. 3d 627, 649.

The Court finds that the motion was timely made. Plaintiff has provided good cause for the proposed amendment. No evidence of prejudice has been presented, and Plaintiff has provided an explanation for the delay in amending. The Court notes that the trial in this matter is scheduled for September 30, 2025. However, as no Opposition was filed, the Court does not consider the upcoming trial date to be a sufficient reason to deny the motion.

The motion is **GRANTED**. Plaintiff provided a proposed Order that will be modified to reflect the Court's ruling. Plaintiff is ordered to file the Second Amended Complaint within 10 days of today's hearing date.

JEWETT, ET AL. VS. CALIFORNIA DEPARTMENT OF HOUSING AND COMMUNITY DEVELOPMENT, ET AL.

Case Number: 24CV-0206422

Proposed Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued on February 28, 2025, to Petitioners John Wesley Bowen and Steven Christopher Jewett, for failure to appear on February 24, 2025, as ordered on January 23, 2025; failure to appear on January 13, 2025, as ordered on November 13, 2024; and failure to provide notice to Respondents, as ordered on November 13, 2025. There is still no valid Proof of Service on file. Petitioners did not file a response to the Order to Show Cause Re: Dismissal. Monetary sanctions have already been imposed. It appears that Petitioners have made no efforts to effect proper service or pursue the litigation that they initiated.

Without sufficient excuse for the delay and because previous sanctions appear to have been ineffective, the matter is **DISMISSED** without prejudice. All future dates are vacated. The clerk is directed to close the file.

KUNAU VS. CITY OF REDDING, ET AL.

Case Number: 24CV-0205953

Tentative Ruling on Motion to Strike: Defendant City of Redding moves to strike the reference to Gov. Code

§ 815.6 and the prayer for attorney fees from the First Amended Complaint filed by Plaintiff Cody Kunau on March 10, 2025. Plaintiff opposes the motion as to Gov. Code § 815.6 and concedes as to the prayer for attorney fees.

Meet and Confer. Before filing a motion to strike a party is required to meet and confer in person or on the telephone. CCP § 435.5(a). Defendant provided evidence that a letter was sent to Plaintiff in lieu of meeting and conferring in person or by telephone as required by statute. However, a determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike. CCP § 435.5(a)(4).

Merits. A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal. App. 3d 24. It is proper for the Court to strike any irrelevant, false or improper matter. CCP § 436(a). The Court can also strike any part of a pleading that is not drawn or filed in conformity with California law. CCP § 436(b).

“Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” Gov. Code § 815.6.

In *State of California v. Superior Court* (1984) 150 Cal.App.3d 848, 854, 197 Cal.Rptr. 914, the court stated: “Government Code 815.6 contains a three-pronged test for determining whether liability may be imposed on a public entity: (1) an enactment must impose a mandatory, not discretionary, duty ...; (2) the enactment must intend to protect against the kind of risk of injury suffered by the party asserting section 815.6 as a basis for liability ...; and (3) breach of the mandatory duty must be a proximate cause of the injury suffered.” (*Ibid.*; citations omitted.) Whether an enactment is intended to impose a mandatory duty is a question of law for the court. (See *Nunn v. State of California* (1984) 35 Cal.3d 616, 624, 200 Cal.Rptr. 440, 677 P.2d 846; *Fox v. County of Fresno* (1985) 170 Cal.App.3d 1238, 1242, 216 Cal.Rptr. 879.)

One of the essential elements that must be pled is the existence of a specific statutory duty. (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802, 223 Cal.Rptr. 206.) “Duty cannot be alleged simply by stating ‘defendant had a duty under the law’; that is a conclusion of law, not an allegation of fact. The facts showing the existence of the claimed duty must be alleged. [Citation omitted.] Since the duty of a governmental agency can only be created by statute or ‘enactment,’ the statute or ‘enactment’ claimed to establish the duty must at the very least be identified.” (*Id.* at p. 802, 223 Cal.Rptr. 206.) Therefore, a “ ‘ ... litigant seeking to plead the breach of a mandatory duty must specifically allege the applicable statute or regulation.’ ” (*Sullivan v. City of Sacramento* (1987) 190 Cal.App.3d 1070, 1080, 235 Cal.Rptr. 844.) “Unless the applicable enactment is alleged in specific terms, a court cannot determine whether the enactment relied upon was intended to impose an obligatory duty to take official action to prevent foreseeable injuries or whether it was merely advisory in character.” (*Ibid.*)

Becerra v. County of Santa Cruz (1998) 68 Cal. App. 4th 1450, 1458.

Plaintiff refers to Redding Municipal Code §§ 13.40.040 and 13.40.050 in the First Amended Complaint.

A. The parks foreman is authorized and directed to plant, inspect and maintain trees in planting strips and public areas, and remove such trees when they institute a hazard or impediment to public travel.

B. Before removing any such tree, the parks foreman shall give the adjoining property owner at least ten days' advance written notice thereof and of the property owner's right to file an objection

to the removal with the commission, whose decision thereon shall be final.

C. Before removing any such tree, the parks foreman shall obtain the concurrence of the director of community services or his designee.

D. No such notice or concurrence shall be required in the case of manifest public hazard and immediate necessity.

Redding Municipal Code § 13.40.040.

A. Notwithstanding Section 13.40.040, the parks foreman may permit a property owner to maintain trees in the parking strip adjoining his property, provided that the type of tree planted therein is one of the trees listed in the comprehensive tree plan.

B. All trimming and other maintenance work upon such trees shall be done by a licensed tree trimmer as provided in Section 13.40.070A or by the owner under the general supervision of the parks foreman and in accordance with the rules established by the comprehensive tree plan.

Redding Municipal Code § 13.40.050.

The only portion of Redding Municipal Code §§ 13.40.040 and 13.40.050 that could possibly constitute a duty is § 13.40.040(a) that directs the park foreman to plant, inspect, maintain, and remove trees.

“ ‘[A]pplication of [Government Code] section 815.6 requires that the enactment at issue be obligatory, rather than merely discretionary or permissive, in its directions to the public entity; it must require, rather than merely authorize or permit, that a particular action be taken or not taken. [Citation.] It is not enough, moreover, that the public entity or officer have been under an obligation to perform a function if the function itself involves the exercise of discretion.’ ” (*Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 898, 95 Cal.Rptr.3d 183, 209 P.3d 89 (*Guzman*)). Courts construe this requirement “rather strictly, finding a mandatory duty only if the enactment ‘affirmatively imposes the duty and provides implementing guidelines.’ ” (*Ibid.*; see *Clausing v. San Francisco Unified School Dist.* (1990) 221 Cal.App.3d 1224, 1240, 271 Cal.Rptr. 72 (*Clausing*) [“If rules and guidelines for the implementation of an alleged mandatory duty are not set forth in an otherwise prohibitory statute, it cannot create a mandatory duty.”].)

Srouy v. San Diego Unified School District (2022) 75 Cal. App. 5th 548, 559-560.

Nothing before the Court leads the Court to the conclusion that § 13.40.040 was intended to impose an obligatory duty to take official action to prevent foreseeable injuries. Important to the Court’s analysis is the absence in the ordinance of implementing guidelines that direct the park foreman in the performance of his duties related to trees within the city of Redding. Under the law as cited above, this absence of guidance means that the enactment of Redding Municipal Code § 13.40.040 does not impose a mandatory duty as required by Gov. Code § 815.6.

Even if the Court were to find that the first two prongs were met, the third prong the three prong test must be met. That prong requires a showing that the breach of the duty was a proximate cause of the injury.

“ ‘Proximate cause is legal cause, as distinguished from the layman’s notion of actual cause, and is always, in the first instance, a question of law.’ ” (*Golden v. Dungan* (1971) 20 Cal.App.3d 295, 97 Cal.Rptr. 577; *Tate v. Canonica* (1960) 180 Cal.App.2d 898, 5 Cal.Rptr. 28.) Proximate cause “is that cause which, in natural and continuous sequence, unbroken by any efficient intervening cause, produced the injury (or damage complained of) and without which such result would not have occurred.” (*Kettman v. Levine* (1953) 115 Cal.App.2d 844, 253 P.2d 102.)

Whitecombe v. County of Yolo (1977) 73 Cal. App. 3d 698, 702-703.

Certainly, a vehicle hitting a tree (as occurred in this case) could be considered an efficient intervening cause.

As Redding Municipal Code §§ 13.40.040 and 13.40.050 are the only statutes listed in the First Amended Complaint, listing Gov. Code § 815.6 is improper and Gov. Code 815.6 shall be stricken.

As the parties agree, and the Court concurs, that attorney fees should be stricken, the Court will order the prayer for attorney fees stricken without analysis.

The Motion to Strike is **GRANTED**. Gov. Code § 815.6 and the prayer for attorney fees shall be stricken from the First Amended Complaint. The Court notes that Plaintiff requested leave to amend but did not provide how any amendment could cure the defect. Unless Plaintiff appears at the hearing and provides how the defect can be cured, leave to amend will not be granted. Defendant submitted a proposed Order that will be modified to reflect the Court's ruling.

IN RE: MASSEY, III

Case Number: 25CV-0207125

Proposed Tentative Ruling on Petition for Change of Name: Petitioner William James Massey, III seeks to change his name to William James Sebree. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied, with the exception that proof of publication has not been filed. The Court intends to grant the Petition upon presentation of sufficient proof of publication. **An appearance is necessary on today's calendar.**

NELLA SEMAJ FOUNDATION, INC VS. ONE THOUSAND AND NINE, LLC

Case Number: 24CV-0205646

Tentative Ruling on Demurrer: This matter arises out of foreclosure on 18300 Antler School Road, Lakehead, CA 96051 ("Property"). Plaintiff Nella Semaj Foundation, Inc.'s Complaint alleges five causes of action for: 1. Negligence, 2. Violation of Civ. Code § 2923, et seq., 3. Violation of Business and Professions Code § 17200, et seq., 4. Wrongful Foreclosure, and 5. Declaratory Relief. Defendant One Thousand and Nine, LLC demurs to each cause of action on the grounds that they do not state facts sufficient to constitute a cause of action against them, and for uncertainty, pursuant to CCP § 430.10.

Judicial Notice: Pursuant to Evidence Code § 452, Defendant requests the Court take judicial notice of four documents relating to the Property which were recorded with the Shasta County Recorder's Office. The documents are: 1. Deed of Trust recorded July 26, 2023, 2. Notice of Default and Election to Sell Under Deed of Trust, recorded February 22, 2024, 3. Notice of Trustee's Sale recorded May 28, 2024, 5. Trustee's Deed Upon Sale recorded June 25, 2024. Plaintiff objects to the requests for judicial notice, arguing that the Court cannot accept facts contained in the judicially noticed documents as true.

Courts may notice official acts and public records, but may not take judicial notice of the truth of all matters stated therein. *Ragland v. U.S. Bank Nat'l Assn.* (2012) 209 Cal. App. 4th 182, 194 (internal citations omitted). The taking of judicial notice of the official acts of a governmental entity does not in and of itself require the acceptance of the truth of factual matters which might be deduced therefrom, since in many instances what is being noticed, and thereby established, is no more than the existence of such acts and not, without supporting evidence, what might factually be associated with or flow therefrom." *Ibid*. The exception is the grant deed; a recorded deed is an official act of the executive branch, of which courts may take judicial notice. *Ibid*. However, as the Court in *Herrera v. Deutsche Bank Nat'l Tr. Co.* (2011) 196 Cal. App. 4th 1366, 1375, explained in the context of a residential mortgage foreclosure litigation, the truth of the factual matters stated within a recorded deed, or similar document, are hearsay and cannot be considered not reasonably subject to dispute.

Here, Defendant argues that the Court may take judicial notice of the facts stated in the recorded deed regarding compliance with notice requirements, pursuant to Civ. Code § 2924(c), which provides that recitals in the deed of compliance with all requirements constitutes prima facie evidence of compliance and conclusive evidence thereof in favor of bona fide purchasers. Despite the presumption, the factual matters regarding notice may still

be reasonably subject to dispute. The Court GRANTS Defendant's request for judicial notice of the existence of each of the documents listed above, but does not accept the truth of the matters stated therein.

Meet and Confer: CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Brianna Milligan satisfies this requirement.

Merits: A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action." CCP § 430.10(e). A demurrer should also be sustained if the pleading is uncertain, meaning that the pleading is ambiguous or unintelligible. CCP § 430.10(f). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App.4th 435, 438. No matter how unlikely, a plaintiff's allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.

First Cause of Action: Negligence. To state a cause of action for negligence, a plaintiff must allege (1) the defendant owed the plaintiff a duty of care, (2) the defendant breached that duty, and (3) the breach proximately caused the plaintiff's damages or injuries. [Citation.] Whether a duty of care exists is a question of law to be determined on a case-by-case basis. [Citation.] [¶] We start by identifying the allegedly negligent conduct by [defendants] because our analysis is limited to 'the specific action the plaintiff claims the particular [defendant] had a duty to undertake in the particular case.' *Alvarez v. BAC Home Loans Servicing, L.P.* (2014) 228 Cal. App. 4th 941, 944, disapproved of by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal. 5th 905. Defendant argues that as a private money lender, it had no duty of care to Plaintiff. "As a general rule, a financial institution owes no duty of care to a borrower when the institution's involvement in the loan transaction does not exceed the scope of its conventional role as a mere lender of money." *Nymark v. Heart Fed. Sav. & Loan Assn.* (1991) 231 Cal. App. 3d 1089, 1096. Here, Plaintiff's Complaint does not plead any facts regarding Defendant exceeding the scope of its conventional role as a mere lender of money such that a duty of care was owed. Plaintiff urges the Court to apply the factors set forth in *Biakanja v. Irving* (1958) 49 Cal.2d 647 to establish a duty of care in this case. However, the California Supreme Court has clearly opined in *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal. 5th 905, 922: "Those factors are commonly employed to ascertain whether a court should recognize a duty, but are useful and appropriate for that purpose only in situations involving parties that are *not* in privity with one another." Plaintiff's Complaint alleges the parties were in privity, as Plaintiff purchased the subject property from Defendant, and Defendant agreed to a seller-finance arrangement and carried a note in the amount of \$595,000. Plaintiff has not stated facts sufficient to constitute a cause of action for negligence. The demurrer to the first cause of action is SUSTAINED with leave to amend.

Second Cause of Action: Violation of Civil Code 2924. Plaintiff alleges Defendant violated this code section by failing to provide notice of the Notice of Default, Notice of Trustee's Sale, or otherwise proceeding with foreclosure without properly notifying the property owner. Defendant argues that Civ. Code § 2924(c), and the existence of a Trustee's Deed Upon Sale effectively bars this cause of action due to the evidentiary presumption. But Plaintiff here has adequately pleaded that Plaintiff received no notice of the acceleration or recordings. As discussed above with respect to judicial notice, whether proper notice was actually given is a fact reasonably subject to dispute. The cause of action is adequately pled. The demurrer to the second cause of action is OVERRULED.

Third Cause of Action: Violation of Bus. & Prof. Code § 17200, et seq. These code sections, also known as California's Unfair Competition Law ("UCL"), prohibit any unlawful, unfair, or fraudulent business act or

practice. Each “prong,” i.e. unlawful, unfair, or fraudulent, is its own independent ground for liability under the unfair competition law. *Long Beach Mem'l Med. Ctr. v. Kaiser Found. Health Plan, Inc.* (2021) 71 Cal.App.5th 323, 342. A plaintiff states a claim under the unlawful prong of the unfair competition law by showing that the challenged practice violates a California statute or regulation. *Ibid.* A plaintiff states a claim under the unfair prong of the unfair competition law by showing the “defendant's ‘conduct is tethered to an underlying constitutional, statutory or regulatory provision, or that it threatens an incipient violation of an antitrust law, or violates the policy or spirit of an antitrust law.’ ” [Citations.] *Graham v. Bank of Am., N.A.* (2014) 226 Cal.App.4th 594, 613, 172 Cal. Rptr. 3d 218, 233–34 (2014). A plaintiff states a claim under the fraudulent prong of the unfair competition law by demonstrating that “ ‘members of the public are likely to be deceived.’ ” [Citations.]” (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 211.) The Second Appellate District of the Court of Appeal has held that “the reasonable consumer standard” applies to actions involving claims under the CLRA and the UCL for unfair or deceptive business practices. *Aron v. U-Haul Co. of California* (2006) 143 Cal. App. 4th 796, 806.

Plaintiff alleges Defendants violated the UCL by failing to ensure appropriate safeguards are put into place prior to the pending foreclosure. Plaintiff further alleges that Plaintiff was provided with no notice of the foreclosure and lost the property. Defendant argues that this cause of action hinges on the success of Plaintiff's cause of action for violation of Civil Code 2924, et seq. and for wrongful foreclosure, as it is a derivative claim. The Court has found the second cause of action is adequately pled. The derivative UCL claim is also adequately pled. The demurrer to the Third Cause of Action is **OVERRULED**.

Fourth Cause of Action: Wrongful Foreclosure. The elements of a tort cause of action for wrongful foreclosure are: 1) the trustee or mortgagee caused an illegal, fraudulent, or willfully oppressive sale of real property pursuant to a power of sale in a mortgage or deed of trust; 2) the party attacking the sale was prejudiced or harmed, and 3) in cases where the trustor or mortgagor challenges the sale, the trustor or mortgagor tendered the amount of the secured indebtedness or was excused from tendering. *Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal.App.4th 394, 408. Plaintiff alleges the foreclosure was wrongful because Civ. Code 2924 barred defendant from foreclosing without adhering to the notice requirements. Defendant argues that there is a TDUS recorded against the property which is presumptive evidence of notice. As discussed above, whether actual notice was given is a fact reasonably subject to dispute.

Defendant further argues that the Complaint fails to allege Plaintiff tendered the indebtedness or was excused from tendering. Recognized exceptions to the tender rule include when: (1) the underlying debt is void, (2) the foreclosure sale or trustee's deed is void on its face, (3) a counterclaim offsets the amount due, (4) specific circumstances make it inequitable to enforce the debt against the party challenging the sale, or (5) the foreclosure sale has not yet occurred. *Chavez v. Indymac Mortg. Servs.* (2013) 219 Cal. App. 4th 1052, 1062. Although Plaintiff's Opposition argues for excuse from tender, the Complaint does not plead either that Plaintiff tendered the indebtedness or was excused from tendering. For that reason, the third element of wrongful foreclosure is not adequately pled. The demurrer to the Fourth Cause of Action is **SUSTAINED** with leave to amend.

Fifth Cause of Action: Declaratory Relief. “To qualify for declaratory relief, [a party] would have to demonstrate its action presented two essential elements: ‘(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [the party's] rights or obligations.’ ” *Jolley v. Chase Home Fin., LLC* (2013) 213 Cal. App. 4th 872, 909. Defendant argues that this cause of action fails because it is wholly derivative of other claims. Plaintiff argues the claim stands alone as Plaintiff seeks to enforce their right to quiet enjoyment of his property. Defendant counters that Plaintiff is not seeking to set aside the foreclosure sale or for quiet title. The Complaint identifies the actual controversy as all parties herein alleging to have an interest in the property. (Complaint ¶ 43.) The Complaint states that Plaintiff is seeking a judicial determination concerning the relative rights, responsibilities, obligations and interest as to each of the parties hereto with respect to the subject property. (Complaint ¶ 44.) However, the prayer does not include a request for set aside of the foreclosure sale or for quiet

title. The prayer does include “specific performance of the breached contract alleged,” however, no contract is alleged. The Complaint is uncertain in this respect, so the cause of action is not adequately pled. The demurrer to the Fifth Cause of Action is SUSTAINED with leave to amend.

Defendant’s Demurrer to the Complaint is sustained in part and overruled in part as detailed above. A proposed order was lodged but is inadequate. Defendant filed the instant Demurrer as well as a separate Motion to Strike, but submitted only one combined order. Defendant is ordered to submit a stand-alone proposed order on the Demurrer consistent with the Court’s ruling. For those causes of action for which leave to amend was granted, Plaintiff will have 10 days to amend running from notice of entry of order.

Tentative Ruling on Motion to Strike: This matter arises out of foreclosure on 18300 Antler School Road, Lakehead, CA 96051 (“Property”). Plaintiff Nella Semaj Foundation, Inc.’s Complaint alleges five causes of action for: 1. Negligence, 2. Violation of Civ. Code § 2923, et seq., 3. Violation of Business and Professions Code § 17200, et seq., 4. Wrongful Foreclosure, and 5. Declaratory Relief. Defendant One Thousand and Nine, LLC moves to strike portions of the Complaint relating to damages. The Motion to Strike was properly noticed, and is unopposed.

Meet and Confer: Before filing a motion to strike a party is required to meet and confer in person or on the telephone. CCP § 435.5(a). A motion to strike shall be supported by a declaration stating either that the parties met and conferred or that they were unable to meet and confer. CCP § 435.5(a)(3). The Declaration of Brianna Milligan satisfies this requirement.

Merits: A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal.App.3d 24. It is proper for the Court to strike any irrelevant, false or improper matter. CCP § 436(a). The Court can also strike any part of a pleading that is not drawn or filed in conformity with California law. CCP § 436(b).

Defendant moves to strike portions of Plaintiff’s Complaint as follows:

1. Emotional distress damages on Negligence claim in paragraph 53.
2. Emotional distress damages on 17200 claim in paragraph 62.
3. Treble damages in Prayer, paragraph 5.
4. Punitive damages in Prayer, paragraph 7.

Defendant moves to strike these portions of the Complaint on the grounds that these requested awards are not legally recoverable. The allegations of Plaintiff’s Complaint do not support damages for emotional distress, treble damages, or punitive damages. The Motion to Strike is GRANTED in its entirety. A proposed order was lodged but is inadequate. Defendant is ordered to submit a stand-alone proposed order on the Motion to Strike consistent with the Court’s ruling.

O2 STAFFING, INC. VS. AHRENS, ET AL.

Case Number: 24CV-0205621

Tentative Ruling on Motion to Set Aside Default: Defendant Farzad Sabet moves to set aside the default entered on December 26, 2024. Plaintiff O2 Staffing, Inc. does not oppose setting aside the default, however, Plaintiff seeks reimbursement of the fees and costs associated with the default.

(b) The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding

six months, after the judgment, dismissal, order, or proceeding was taken. However, in the case of a judgment, dismissal, order, or other proceeding determining the ownership or right to possession of real or personal property, without extending the six-month period, when a notice in writing is personally served within the State of California both upon the party against whom the judgment, dismissal, order, or other proceeding has been taken, and upon his or her attorney of record, if any, notifying that party and his or her attorney of record, if any, that the order, judgment, dismissal, or other proceeding was taken against him or her and that any rights the party has to apply for relief under the provisions of Section 473 of the Code of Civil Procedure shall expire 90 days after service of the notice, then the application shall be made within 90 days after service of the notice upon the defaulting party or his or her attorney of record, if any, whichever service shall be later. No affidavit or declaration of merits shall be required of the moving party. Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. However, this section shall not lengthen the time within which an action shall be brought to trial pursuant to Section 583.310.

(c)(1) Whenever the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may do any of the following:

- (A) Impose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party.
- (B) Direct that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund.
- (C) Grant other relief as is appropriate.

(2) However, where the court grants relief from a default or default judgment pursuant to this section based upon the affidavit of the defaulting party's attorney attesting to the attorney's mistake, inadvertence, surprise, or neglect, the relief shall not be made conditional upon the attorney's payment of compensatory legal fees or costs or monetary penalties imposed by the court or upon compliance with other sanctions ordered by the court.

CCP § 473.

Here, counsel has provided evidence of attorney mistake and inadvertence which caused Defendant to not timely file a responsive pleading and default to be entered. While the blame was placed on “an administrative oversight in [his] office” and not Mr. Swanson himself, the Declaration of Jeffery J. Swanson acts as an attorney affidavit of fault. This makes granting the motion mandatory under CCP § 473(b) unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The Court does not find this. Therefore, the default will be set aside. Given the evidence presented and lack of objection by Plaintiff, the Court also would have set aside the default under the discretionary portion of CCP § 473(b).

“The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.” CCP § 473(b). Additionally, the Court can impose a penalty no greater than \$1,000, direct a payment of no greater than \$1,000 to the State Bar Client Security Fund, or grant other relief as appropriate.

Here, Plaintiff seeks \$2,101.85 as reimbursement of costs incurred in seeking default that would not have been incurred had Defendant timely responded to the summons. The \$2,101.85 is comprised of fees for service of process, attorney time to prepare a letter regarding service, attorney time for requesting default, attorney time to meet and confer regarding setting aside the default, and attorney time spent on this motion, including the reply and attending the hearing. The Court finds that the service of process fees and .4 hours to prepare the letter regarding service would have been incurred regardless. However, Plaintiff's counsel spent .4 hours preparing the Request for Entry of Default, .9 hours meeting and conferring regarding this motion, and 2.5 hours reviewing and responding to this motion. Counsel expects to spend one hour attending the hearing and reviewing the Reply which would bring the total to 4.8 hours of attorney time. The Court finds the \$350 hourly rate to be reasonable. The Court orders that Defendant and counsel reimburse Plaintiff for \$1,680.00 for attorney fees incurred by Plaintiff that would not have been incurred had Defendant timely responded to the summons.

The Court notes that Defendant also moves under CCP § 473.5 and extrinsic mistake. The Court need not reach the merits of either as the motion is granted under CCP § 473(b). However as there is an argument regarding fees, the Court notes that to prevail under CCP § 473.5, a defendant must show that service of the summons did not result in actual notice to the party. That is not the case here. Missing from Defendant's declaration is any mention that he did not receive the summons when it was served by substitute service at Defendant's place of employment on October 30, 2024. While CRC 3.1700(a)(2) requires that costs be requested at the time of seeking a default judgment, only a default was sought on December 26, 2024, not a default judgment. Additionally, Defendant has provided no legal authority that the Court cannot order reimbursement of costs under CCP § 473 when the costs are not listed under Item 2 of the CIV-100 form or that the Court cannot order reimbursement when the default is set aside based on intrinsic mistake. The Court notes that had the Court set aside under the discretionary portion of CCP § 473(b), the Court could still impose “any terms as may be just.” Reimbursement of costs incurred due to the fault of the opposing party is manifestly just.

The motion is **GRANTED**. The default entered on December 26, 2024 is ordered set aside. Defendant must file a responsive pleading within 30 days of today's hearing. Defendant and counsel have 10 days from today's hearing to reimburse Plaintiff \$1,680.00. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant is to prepare an Order consistent with the Court's ruling. The Court confirms the review hearing scheduled for **Monday, July 7, 2025 at 9:00 a.m. in Department 63.**

REYNOLDS VS. QUALITY CARE HOME, INC., ET AL.

Case Number: 22CV-0200604

Tentative Ruling on Motion for Terminating Sanctions: Plaintiff Lisa Reynolds moves for terminating sanctions based on Defendants' failure to pay monetary sanctions ordered in prior discovery motions. On May 5, 2025, Defendants filed the Declaration of Yue Zhao providing evidence a check was mailed on April 7, 2025 and another check was hand delivered on April 22, 2025. Plaintiff filed a Notice of Non-Opposition on May 6, 2025 in which Plaintiff confirms that both checks were received. While the payment of the monetary sanctions does not render the motion moot, the Court does not find that any additional sanctions are warranted and declines to award any of the relief requested by Plaintiff. The motion is **DENIED**. No sanctions will be awarded. Plaintiff provided a proposed Order that will be modified to reflect the Court's ruling.

ROBINSON, ET AL. VS. COUNTY OF SHASTA

Case Number: CVCV20-0195757

Tentative Ruling on Motion to Strike Costs: Plaintiffs Michael and Christina Robinson move to strike or in the alternative tax Defendant County of Shasta's Memorandum of Costs. Plaintiffs move to strike the following specific costs:

- Item 4: Deposition Costs (\$11,893.69)
- Item 11: Court Reporter Fees (\$10,735.07)
- Item 12: Models, Enlargements, and Photocopies of Exhibits (\$2,313.52)
- Item 16: Other – Attorney/Messenger Services, CourtCall, Travel and Mediation (\$8,314.40)

Merits of Motion. Pursuant to CCP § 1032, the party prevailing in most civil cases may recover costs of suit in any action or proceeding. See CCP § 1032(b); *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606. The Court has already issued an order on February 27, 2025 that Defendant was the prevailing party pursuant to CCP § 1032(a)(4). The determination of a prevailing party is not the end of the analysis, however. Section 1032(a)(4) provides that the Court has discretion to award or deny costs to the prevailing party. The Court will exercise its discretion to award costs to Defendant. Plaintiffs filed the present action to quiet title to a roadway that encumbered their real property. Plaintiffs' actions forced Defendant to defend itself through trial, where it succeeded in obtaining a judgment that it had a right to the roadway, albeit with a smaller scope than Defendant argued. Accordingly, the Court finds Defendant is entitled to costs pursuant to CCP § 1032(a)(4).

Costs are only recoverable if they are both reasonable in amount and reasonably necessary to the conduct of the litigation. CCP § 1033.5(c)(2)(3). Plaintiffs challenge the various costs on the grounds that they were not "reasonably necessary" to the litigation. Plaintiffs' technical argument is that the costs were not reasonably necessary to Defendant's stated objective of preserving access to the roadway. The Court finds this argument to be without merit. Plaintiffs sought to quiet title to the roadway claimed by Defendant. Defendant accordingly had a right to defend itself in the litigation. This defense would necessarily incur normal litigation costs.

Verification of the memorandum of costs by the prevailing party's attorney establishes a prima facie showing that the claimed costs are proper. *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267. "If the items on a verified cost bill appear proper charges, they are prima facie evidence that the costs, expenses and services therein listed were necessarily incurred." *Rappenecker v. Sea-Land Service, Inc.* (1979) 93 Cal.App.3d 256, 266. Once the item is properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. *Ladas v. California State Auto Assn.* (1993) 19 Cal.app.4th 761, 774. The Court has reviewed Plaintiffs' argument related to each challenged category of costs and find that they have not properly objected to the amount or necessity of the costs. Accordingly, the memorandum of costs is prima facie evidence that the costs were reasonably necessary. Out of an abundance of action, the Court has independently reviewed each challenged category of costs and finds that they were reasonably necessary to Defendant's defense. The Court is mindful that the scope of the litigation was controlled by the Plaintiffs' complaint which sought to quiet title to the entire roadway. The Court finds that Plaintiffs have failed to sufficiently challenge the amount and necessity of the costs.

The motion is **DENIED**. A proposed order was lodged with the Court which will be modified to reflect the Court's ruling.

9:00 a.m. – Review Hearings

HARTMAN VS. LINDSAY, SR

Case Number: 24CV-0205998

This matter is on calendar for review regarding status of responsive pleading and trial setting. Defendant filed a General Denial and the matter is now at issue. The Court designates this matter as a Plan II case and intends on setting the matter for trial no later than March 10, 2026. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

JEWETT, ET AL. VS. CALIFORNIA DEPARTMENT OF HOUSING AND COMMUNITY DEVELOPMENT, ET AL.

Case Number: 24CV-0206422

This matter was dismissed on this morning's Law & Motion calendar and all future hearings were vacated.

JOHNSON, ET AL. VS. DOMINANT INK, ET AL.

Case Number: 23CV-0203847

This matter is on calendar for review regarding status of the case and trial setting. The Court notes that the matter is at issue. The Court designates this matter as a Plan III case and intends on setting the matter for trial no later than December 9, 2025. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

K&S STAFFING SOLUTIONS, INC VS. FIDELITY AND DEPOSIT COMPANY OF MARYLAND, ET AL

Case Number: CVCV18-0189440

This matter is on calendar for review regarding status of bankruptcy. Plaintiff was to file a status statement and provide the bankruptcy judgment prior to today's hearing. No status statement was filed and the bankruptcy judgment has not been provided. **An appearance is necessary on today's calendar.**

KEMP VS. WAIT ROOFING & SEAMLESS GUTTER, INC., ET AL.

Case Number: 24CV-0206390

This matter is on calendar for review regarding status of arbitration as to Defendant LeafFilter North, LLC and status of responsive pleadings as to Defendant Wait Roofing & Seamless Gutter, Inc. The Court notes that a Proof of Service of Summons was filed as to Defendant Wait Roofing & Seamless Gutter, Inc. on December 16, 2024. No responsive pleading or Request for Entry of Default have been filed. No status statement was filed regarding the status of arbitration. **An appearance is necessary on today's calendar.**

MANGELS VS. RANDELL, ET AL.

Case Number: 23CV-0203674

This matter is on calendar for status and trial setting. The Court notes that the litigation is at issue. The Court deems this a Plan III matter and intends to set the matter for trial no later than November 12, 2025. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

MOOK, ET AL. VS. JEANTETTE

Case Number: 22CV-0200414

This matter is on calendar for review regarding status of judgment. As noted in the tentative ruling on April 28, 2025, while the Court granted Plaintiffs' Motion for Summary Judgment on March 10, 2025, no proposed judgment has been submitted. A judgment must be filed in order to close the file. **An appearance is necessary on today's calendar.**

PIERCY, ET AL. VS. MCINTOSH, ET AL.

Case Number: 24CV-0204617

This matter is on calendar for review regarding status of service. The Court notes that the litigation is at issue. The Court deems this a Plan III matter and intends to set the matter for trial no later than March 24, 2026. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

PONCIANO, ET AL. VS. MARX, ET AL.

Case Number: CVCV20-0194371

This matter is on calendar for a further status conference regarding status of the Petition for Writ of Mandate and potential trial setting. The Court notes that the Petition for Writ of Mandate and/or Prohibition was denied by the Court of Appeal via order filed May 16, 2025. Defendant subsequently filed a petition for review and a request for a stay with the California Supreme Court. The supreme court has yet to rule on the petition and request. **An appearance is necessary on today's calendar to discuss the status of the case.**

PROGRESSIVE SELECT INSURANCE COMPANY VS. FABELA, ET AL.

Case Number: 24CVG-00115

This matter is on calendar for review regarding status of service and potential trial setting. The Court notes that the litigation is at issue. The Court deems this a Plan III matter and intends to set the matter for trial no later than January 27, 2026. Defendants have posted jury fees but Plaintiff has not. Plaintiff is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

ROBBINS VS. ADVANCED CRISIS SOLUTIONS, INC.

Case Number: 24CV-0204925

This class action matter is on calendar for a trial setting conference. A motion for class certification has not been heard. The parties are ordered to meet and confer prior to the hearing regarding when the motion may be heard. **An appearance is necessary on today's calendar.**

WEST VS. CITY OF REDDING, ET AL.

Case Number: 24CV-0205611

This matter is on calendar for review regarding status of service and responsive pleading. While no Proof of Service of Summons has been filed, Defendants filed a Declaration of Demurring Party in Support of Automatic Extension on May 20, 2025. The matter is continued to **Monday, July 14, 2025 at 9:00 a.m. in Department 63** for status of the case. **No appearance is necessary on today's calendar.**

WINES, ET AL. VS. RIVER BREEZE MHP LLC, ET AL.

Case Number: 22CV-0200647

This matter is on calendar for a trial setting conference. The Court deems this matter exempt from Plan Designation. The Court that the matter was filed on September 16, 2022 and intends to set the matter for trial

before the end of the year. Both parties have posted jury fees. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

YAKAITIS VS. WOODFORD, ET AL.

Case Number: 24CV-0205546

This matter is on calendar for trial setting. The Court notes the matter is at issue. The Court deems this a Plan II matter and intends to set the matter for trial no later than January 13, 2026. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

IN RE PEREZ

Case Number: 24PB-0032657

This matter is on calendar for status of purchase of annuity. The Court has reviewed the Declaration of Esteban Espinosa-Ulloa and is satisfied that the annuity has been purchased. The clerk is directed to close the file and vacate any future dates. **No appearance is necessary on today's calendar.**